

Asha vs Praveen V.S on 7 July, 2016

Author: K.Harilal

Bench: K.Harilal

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE K.HARILAL

THURSDAY, THE 7TH DAY OF JULY 2016/16TH ASHADHA, 1938

Tr.P(C).No. 491 of 2015 ()

OP 114/2014 of FAMILY COURT, KASARAGOD

PETITIONER(S)/RESPONDENT:

ASHA, D/O.KUTTAYI,
MOOLAMKODE, KARAPPADAM POST,
ALATHUR, PALAKKAD DISTRICT PIN 678 684

BY ADVS.SRI.K.P.SUDHEER
SRI.ARUN MATHEW VADAKKAN

RESPONDENT(S)/PETITIONER:

PRAVEEN V.S.
S/O. SASI V.S, VAZHUR HOUSE, PUTHENVELIKKARA POST,
PARAVUR, ERNAKULAM DISTRICT NOW RESIDING AT
POOKKUNNATH, MAILATTY POST, HOSDURG,
KASARAGOD DISTRICT PIN - 671 319

THIS TRANSFER PETITION (CIVIL) HAVING BEEN FINALLY
HEARD ON 07-07-2016, THE COURT ON THE SAME DAY PASSED
THE FOLLOWING:

bp

Tr.P(C).No. 491 of 2015 ()

APPENDIX

PETITIONER'S ANNEXURES :

ANNEXURE A1: COPY OF NO.114 OF 2014 DT 10/3/2014 FILED BY THE RESPONDENT HEREIN BEFORE THE FAMILY COURT, KASARAGOD.

ANNEXURE A2: COPY OF NOTICE DT 24/3/2014 FROM THE FAMILY COURT, KASARAGOD TO THE PETITIONER IN OP NO. 114/2014.

ANNEXURE A3: COPY OF M.C. NO. 94/2015 FILED BY THE PETITIONER AND 7 YEAR OLD CHILD BEFORE THE FAMILY COURT, PALAKKAD DT 9/5/2015.

RESPONDENT'S ANNEXURES : NIL.

//TRUE COPY//

P.A. TO JUDGE

bp

K.HARILAL, J.

Tr.P.(C). No.491 of 2015

Dated this the 7th day of July, 2016

O R D E R

~ ~ ~ ~ ~ The petitioner herein is the wife of the respondent. Their marital relationship has got strained due to disharmony and now they are living separately. The respondent filed O.P.No.114/2014 before the Family Court, Kasaragod seeking reliefs under the Hindu Marriage Act. Thereafter, the petitioner filed M.C.No.94/2015 before the Family Court, Palakkad seeking maintenance allowance under Section 125 of the Cr.P.C. The petitioner submits that they have a child aged 7 years and the child is under the custody of the petitioner. The petitioner's father is no more and now she is residing with her aged mother at Palakkad. She has to travel a long distance to

reach Kasaragod to defend O.P.No.114/2014 and she is not in a position to travel with the child.

Tr.P(C).491/15 :2:

2. Heard the learned counsel for the petitioner.

3. In *Mangala Patil Kale v. Sanjeev Kumar Kale* [2003 (10) SCC 280], the Apex Court held that in the matter of transferring family court cases, the convenience of the wife must be given preference. In *Amita Shah v. Virenderlal Shah* 2003 (10) SCC 609, the Apex Court again held that wife's lack of companionship to travel to Family Court is a sufficient reason to transfer the case to a court near the house of the wife.

4. Having regard to the inconvenience of the petitioner in conducting the case before the Family Court, Kasaragod, in the light of the decisions referred above, this Court is inclined to allow the petition as prayed for. Consequently, O.P.No.114/2014 on the files of the Family Court, Kasaragod will stand transferred to the Family Court, Palakkad. The Family Court, Palakkad shall issue notice intimating the date Tr.P(C).491/15 :3:

of appearance to both parties.

This Transfer Petition is allowed.

Sd/-

K. HARILAL, JUDGE okb.